Letter of Medical Necessity

Pretax spending accounts, including flexible spending arrangements (FSAs) and health reimbursement arrangements (HRAs), may only reimburse eligible expenses pre-tax as permitted by the IRS.

Certain medical expenses are not reimbursable under a Health Care FSA or HRA, unless a physician or medical practitioner states that the service or product is medically necessary.

Code Section 213(d)

"The term medical care means amounts paid –

(A) For the diagnosis, cure, mitigation, treatment, or prevention of disease, or for the purpose of affecting any structure or function of the body,"

When submitting claims for reimbursement for a FSA or HRA, expenses that may be considered "dual purpose" require a Letter of Medical Necessity (LMN). A dual purpose expense is an expense that could be used for both medical and non-medical reasons (i.e. vitamins). In IRS News Release IR-2024-65, the IRS warns that taxpayers are being misled that personal expenses could be medical expenses if such expenses are supported by a LMN. IRS News Release IR-2024-65 also states self-diagnosis is not sufficient to determine medical necessity of a dual purpose expense. In the frequently asked questions about medical expenses related to nutrition, wellness, and general health issued by the IRS on March 17, 2023, dual purpose expenses may be eligible if the patient's physician or medical practitioner has diagnosed a medical condition and recommended a specific item or service to treat the diagnosed medical condition. The IRS has also commented on the need for a LMN in several information letters, including IRS Information Letters 2022-0005 and 2016-0013.

Letter of Medical Necessity

Section I

Date: 01/02/2026

Employer Name: _____

Patient Name: Nicole Birkner

Employee Name: Nicole Birkner

Section II (required for expenses specifically requiring an LMN e.g. weight loss programs, vitamins/supplements, etc.) Diagnosis: Lower Back Pain (M54.5)

Treatment Duration Start date: 01/02/2026 End date: 01/02/2027

Procedure (CPT) Code or ICD-10 code: M54.5

Hello Navia Benefits:

(Please describe the **medical condition**, the **treatment you recommend**, and **how such treatment relates** to the diagnosed condition)

See following pages for treatments and products

Gym/Health Club Memberships:

[X] **Provider** – check the box if the recommended treatment for the above diagnosis is for a gym/health club membership and the cost of membership is only incurred due to the recommendation to treat a specific medical condition and not for general health and well-being. The cost of the membership is only eligible for the duration of the treatment of the specific medical condition listed above. Please list the treatment expiration date below.

Expiration Date: 01/02/2027

[ ] **Participant** – Please initial in the box to certify that this gym/health club membership would not have been purchased but for the existence of the medical condition as diagnosed by my medical provider and would not have been purchased absent the medical condition. I will not submit a claim for reimbursement for any month during which I do not attend the gym/health club.

Provider's signature: _____

By signing this Letter of Medical Necessity I certify under penalty of perjury that I am a license medical provider in the state of California. I have met with or engaged with the patient using telehealth technologies. Based on my professional assessment and medical evaluation, I understand and/or have diagnosed the above medical condition. In my professional judgment, I recommend the specific treatment or service listed above as medically necessary for the treatment and management of the patient's medical condition. This treatment is essential to the diagnosis, cure, mitigation, treatment, or prevention of the patient's condition.

PROVIDER AGREES TO INDEMNIFY, DEFEND, AND HOLD HARMLESS THE EMPLOYER PLAN AND NAVIA BENEFIT SOLUTIONS, INC. FROM ANY AND ALL CLAIMS, LIABILITIES, DAMAGES, AND EXPENSES, INCLUDING REASONABLE ATTORNEY'S FEES, ARISING OUT OF OR RELATED TO THE EXPENSE BEING CLAIMED AS INELIGIBLE.

If you require any additional information or have any questions, please feel free to contact me at my phone number below.

Clinic/Hospital/Office Name: Office of Kristina Frederick, PA - 14114

Address: 1800 E 4th St Unit 101, Austin, TX 78702

Phone Number: (470) 924-2915

Participant signature: _____

By signing this Letter of Medical Necessity I certify under penalty of perjury that the expenses for which this LMN supports are eligible medical expenses as defined under Section 213(d) of the Internal Revenue Code. I further attest that the expense(s) for which this LMN will support will be incurred by me or my eligible dependents, the expenses were necessary for the diagnosis, cure, mitigation, treatment, or prevention of disease for me or my dependent(s), the expenses would not have been incurred but for the medical condition for which they are claimed, I have not been reimbursed for these expenses by any other plan, and I will not seek reimbursement from any other source, I understand that any amounts reimbursed that are not for qualified medical expenses under IRC Section 213(d) must be reported as taxable income and may be subject to penalties. I understand that falsifying information or providing misleading documentation may compromise the tax benefit status of the underlying plan, result in disciplinary action, up to and including termination of employment and/or legal action.

EMPLOYEE/PARTICIPANT AGREES TO INDEMNIFY, DEFEND, AND HOLD HARMLESS THE EMPLOYER PLAN AND NAVIA BENEFIT SOLUTIONS, INC. FROM ANY AND ALL CLAIMS, LIABILITIES, DAMAGES, AND EXPENSES, INCLUDING REASONABLE ATTORNEY'S FEES, ARISING OUT OF OR RELATED TO THE LMN IS NOT VALID, THE EXPENSE WOULD HAVE BEEN INCURRED BUT FOR THE MEDICAL CONDITION, OR ANY OF THE EXPENSES CLAIMED DO NOT QUALIFY AS MEDICAL EXPENSES UNDER IRC SECTION 213(d).

Note: Navia Benefits requires that proper documentation support your FSA claims. If your letter is incomplete your claim will be denied.

Please Fax to: 1-866-535-9227 or email to
customerservice@naviabenefits.com

Questions? Please call: 1-800-669-3539

Letter of Medical Necessity

Date: January 02, 2026

To: HSA/FSA Administrator

From: Kristina Frederick, PA

Participant Name: Nicole Birkner

Subject: Letter of Medical Necessity for Nicole Birkner

Analysis and Recommendation:	
Reported Diagnosis: Lower Back Pain (M54.5)	
Recommended Products and Services: **Treatment:** The patient has a history of Lower Back Pain (M54.5). I recommend the patient utilize personal training & fitness classes from ClassPass for 2-3 days per week, with each session lasting 45-60 minutes, as tolerated, as part of the management plan for 12 months. **Clinical Rationale**: Lower back pain is a prevalent condition that can be caused by various factors, including muscle strain, poor posture, and degenerative changes, which can lead to reduced physical function and quality of life. Research suggests (Searle et al., 2015) (PMID: 25681408) that personalized exercise programs, such as those provided in personal training and fitness classes, can help mitigate elements related to lower back pain by improving muscle strength and flexibility, enhancing posture, and reducing pain symptoms. **Role of ClassPass:** ClassPass provides the necessary intervention to facilitate the intended therapy. **Conclusion:** In light of the patient's Lower Back Pain diagnosis and based on the literature review on proven benefits, personal training & fitness classes are medically necessary as part of the patient's comprehensive treatment plan.	
Intervention Start Date: January 02, 2026	**Intervention End Date:** January 02, 2027

Provider Information	
Provider Name: Kristina Frederick, PA	**Provider Address:** 1800 E 4th St Unit 101, Austin, TX 78702

Provider Information	
Provider Phone Number: (470) 924-2915	**Provider Email:** lmnsupport@rcmedicine.com
Provider License: 14114	**License State:** California

This intervention is medically necessary to treat the specific medical condition noted above. This intervention is not for general health; and is not for cosmetic purposes to improve appearance.

Signed:



Kristina Frederick, PA

January 02, 2026